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COMPREHENSIVE GUIDELINES ON LICENSING AND CONSTRUCTION CONDITIONS FOR HOSPITALS IN VIETNAM

2025

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See also Comprehensive Guide to Hospital Licensing Requirements in Vietnam 2025



INTRODUCTION

Vietnam's health system is undergoing a profound transformation to meet the increasing demands for service quality, equity in access and operational efficiency. The 2025–2030 period marks an important turning point with the orientation of building a modern, synchronous and patient-centered hospital network.

The development plan focuses on re-planning the health examination and treatment system towards regionalization, specialization and strengthening of primary health care. In parallel, there is focused investment in infrastructure, medical technology, and improving the capacity of health human resources. Policies on socialization and attracting private investment are also promoted to mobilize diverse resources for industry development.

Obtaining a hospital operation license is a mandatory requirement under the Law on Medical Examination and Treatment No. 15/2023/QH15. This is not only an administrative procedure but also a commitment to quality and safety in medical services.

This document provides a comprehensive legal and procedural overview based on the updated legal framework effective by 2025, assisting investors and healthcare providers in complying with licensing procedures.

See also Comprehensive Guide to Hospital Licensing Requirements in Vietnam 2025

I. LEGAL FRAMEWORK



The year 2025 marks a systematic change in hospital construction regulations in Vietnam. The new standards are issued not only to improve the quality of medical infrastructure and ensure patient safety, but also to promote the integration of modern technological solutions into the design, construction and operation of medical examination and treatment facilities.

- Law on Medical Examination and Treatment No. 15/2023/QH15 (effective from 01 January 2024).
- Decree No. 96/2023/ND-CP detailing the implementation of the Law.
- Circular No. 25/2023/TT-BYT: Outlines minimum technical requirements for medical equipment, infrastructure, and basic conditions for operation.
- Circular No. 32/2023/TT-BYT: Details mandatory continuing medical education, criteria for practice licenses, and personnel requirements.
- Circular No. 35/2024/TT-BYT: Establishes national hospital quality standards, covering patient safety, infection control, and performance indicators.

National Standards (QCVN and TCVN):

- QCVN 01:2021/BXD – National technical regulation on urban planning.
- QCVN 10:2024/BXD – Regulations on construction accessibility for persons with disabilities.
- TCVN 4470:2012 – Design standards for general hospitals.
- TCVN 3890:2023 – Fire prevention and firefighting equipment requirements
- TCVN 8022:2009 – Technical standards for medical gas systems

II. CONDITIONS FOR HOSPITAL OPERATION LICENSING

① Physical Infrastructure

- Minimum construction area: 50m²/bed; minimum frontage: 10 meters.
- Departments must be arranged in a connected, enclosed manner, ensuring sterility and environmental hygiene.
- Minimum bed capacity:
  - General hospital: 30 beds
  - Specialized hospital: 20 beds (ophthalmology: 10 beds)
- Mandatory departments: outpatient, inpatient, emergency, laboratory, surgery, sterile zone, administration/logistics.



② Medical Equipment

- Must comply with the list of equipment corresponding to registered specialties.
- Equipment must have clear origin, be regularly inspected, calibrated, and maintained.
- Technical documentation must be managed and operated according to applicable standards (TT 08/2019/TT-BYT, relevant QCVN).

③ Professional Human Resources

- Director: a medical doctor with a minimum of first-level specialization, senior political training, and at least two years of managerial experience.
- At least 70% of personnel in each department must be full-time employees.
- All medical personnel must possess valid professional licenses and engage in continuous medical training (under Circular No. 32/2023/TT-BYT).



III. LICENSING PROCEDURES

1. Application Dossier (as per Article 60, Decree 96/2023/ND-CP)

Application form (Form No. 02, Appendix II).

- Legal documents: Enterprise Registration Certificate, establishment decision, Investment Certificate (if applicable).
- Personal documentation: practice license and work history of the professional in charge.
- Personnel list, list of medical equipment, and declaration of physical facilities.
- Organizational regulations, list of technical services.
- Financial documents (for humanitarian or non-profit facilities).

2. Submission and Appraisal (as per Articles 51 and 52, Law on Medical Examination and Treatment 2023)

- Within 10 working days: If the dossier is incomplete or invalid, the applicant will be notified in writing with a list of missing or incorrect documents. The applicant must supplement within the prescribed timeframe.
- If the dossier is complete and valid, the authority will proceed to schedule an on-site inspection.
- On-site appraisal includes:
- Verification of actual conditions against the dossier, including infrastructure, equipment, personnel, and regulatory compliance.
- Assessment of infection control protocols, emergency preparedness, medical waste management, and compliance with construction standards.
- Within 60 working days from receiving a valid dossier:
- The authority shall issue a written decision to grant the operation license if all conditions are met.
- If conditions are not met, a refusal notice will be issued with clear legal justification and remedial instructions.

IV. CONSTRUCTION STANDARDS AND PLANNING

1. Design, Scale, and Movement Flow

- Architectural and spatial planning for hospitals must conform to Vietnamese and international standards, particularly TCVN 4470:2012 (Design Standards for General Hospitals), TCVN 9212:2012 (Design principles for specialized hospitals), and QCVN 01:2021/BXD (National Regulation on Urban Construction Planning).
- Patient room area: ≥ 9–12m²/bed; operating room: ≥ 36m², ceiling height: ≥ 3.1m.
- One-way movement flow must be ensured with clear separation between clean and contaminated areas.
- Arrange departments, rooms, and activities to ensure professional activities are concentrated, interconnected, and discreet within the hospital's members; ensure sterile conditions and a protective environment according to the provisions of law;

2. Special Technical Requirements

- Fire safety: TCVN 3890:2023, TCVN 5738, TCVN 7568.
  - Compliance with TCVN 3890:2023 (Fire Prevention Equipment), TCVN 5738 (Fire Alarm Systems), and TCVN 7568 (Electrical Safety for Fire Protection Systems).
  - Installation of fire doors, smoke detectors, alarm systems, and emergency lighting in accordance with risk zones.
- Medical gas system: TCVN 8022-1/2:2009, ISO 7396.
- Electrical systems: TCVN 7447-7-710:2006, QCVN 01:2021/BXD.
- ICT infrastructure: Circular 54/2017/TT-BYT on smart hospitals.

3. Environmental and Accessibility Standards

- Wastewater treatment: QCVN 28:2010/BTNMT
- Solid hazardous waste: QCVN 07:2009/BTNMT
- All areas must be accessible in compliance with QCVN 10:2024/BXD.
- Include ramps, elevators with braille buttons, toilets adapted for wheelchair users, handrails, and tactile paths.



V. INVESTMENT REQUIREMENTS

1. Minimum Investment Capital

- 500 beds: ≥ VND 300 billion
- 200–500 beds: ≥ VND 200 billion
- Specialized hospitals: ≥ VND 100 billion



2. Project Implementation Roadmap (24–36 months)

Phase 1: Feasibility study – Design – Construction Permit Application

- This phase includes conducting market analysis, demographic and healthcare needs assessment, and site evaluation to determine the hospital's location, scale, and specialties.
- Environmental impact assessments, fire safety appraisal, and land use permits (if required) must be completed.

Phase 2: Construction – Equipment Installation

- Installation of key systems: HVAC, medical gas systems, elevators, ICT infrastructure, power backup systems, and centralized sterilization units.

Phase 3: Trial Operation – Licensing Application

- Conduct internal test runs, system calibration, safety inspections, and fire drills
- Compile licensing dossier and submit to Department or Ministry of Health. Complete final on-site inspection and obtain the official Operation License.

See more: Analysis of Circular on Hospital Construction Guidelines: Updated 2025

VI. TIMEFRAME AND COSTS



Timeframe

- Supplementary documents at the competent authority according to Article 51 of the Law on Medical Treatment;
- The appraisal period shall not exceed 60 days from the date of receipt of the complete dossier (Clause 4, Article 52 of the Law on Medical Treatment).
- In case the dossier is invalid, within 10 working days from the date recorded on the dossier receipt, the Ministry of Health must issue a written notice to the facility applying for a license to complete the dossier. The time for handling the procedure will be calculated from the date of receipt of the complete supplementary dossier.

Costs

- Fee for assessing operating conditions
  - Pursuant to Article 4 of Circular No. 59/2023/TT-BTC, this fee is regulated by the Ministry of Finance and collected by the competent authority (Department of Health or Ministry of Health) depending on the scale of the hospital.
- Translation, notarization, and consulting costs (if any)
  - Applicable when the dossier uses documents in a foreign language, or when the investor is a foreign organization or individual.
- Infrastructure, equipment, and personnel investment costs
  - This is a mandatory investment to meet the licensing conditions under Article 60 of the Law on Medical Examination and Treatment No. 15/2023/QH15.

Refer to the licensing process for hospitals under the Ministry of Health at: Information system for handling administrative procedures of the Ministry of Health



VII. CHALLENGES AND SOLUTIONS

1. Challenges

- Complex, multi-step procedures requiring interdepartmental coordination
- Difficulty in recruiting licensed medical personnel
- Delays or discrepancies in imported medical equipment

2. Solutions

- Sign framework agreements with equipment and staffing providers
- Use project management software to track legal and procedural milestones
- Engage professional legal and technical consultancy firms from project inception

VIII. HOSPITAL NETWORK DEVELOPMENT STRATEGY 2025–2030



1.Promote regionalization, specialization and decentralization of hospitals

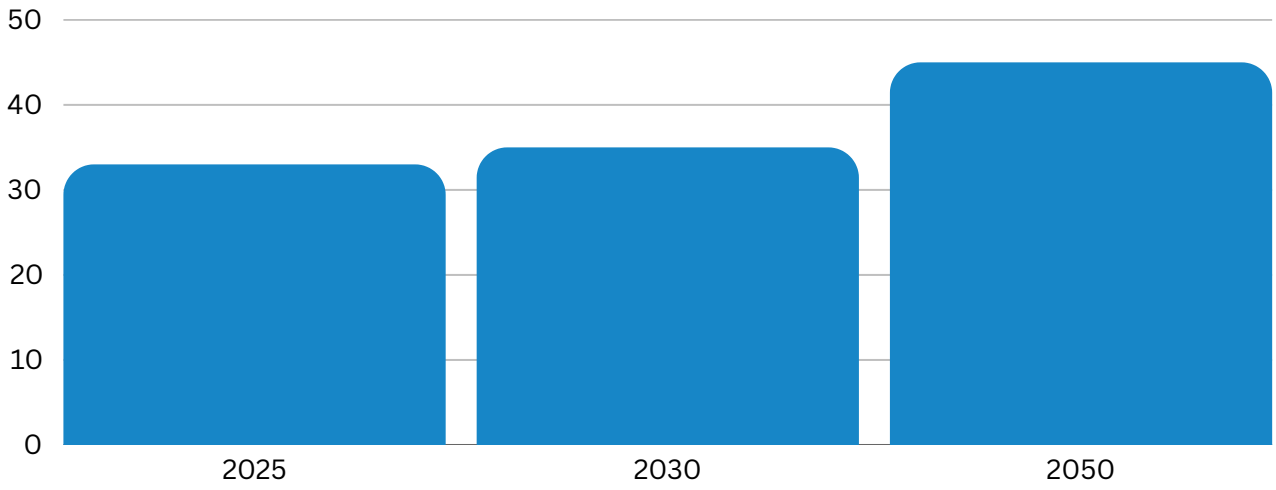
2.Encourage socialization, private sector investment, and digital/smart hospital development

3.Bed-per-population targets

2025: 3.3 beds/1,000 population

2030: 3.5 beds/1,000 population

2050: 4.5 beds/1,000 population



See also Vietnam Medical Device Market: A Comprehensive Guide for Foreign Investors

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IX. CONCLUSION

- Hospital licensing is a comprehensive process requiring legal, technical, and financial preparedness.
- Investors must develop standardized dossiers, architectural plans, and employ eligible personnel.
- Expert consultation in legal, construction, and hospital management is crucial for successful and compliant implementation.

THANK YOU !



Our Contact

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